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File No.: EXP202206974

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 29/05/2022, a document was received by this Agency submitted by A.A.A. (hereinafter, the complainant), through which a complaint is made against COFIDIS S.A., BRANCH IN SPAIN with NIF W0017686G (hereinafter, COFIDIS), for a possible breach of the provisions of personal data protection regulations.

The reasons on which the complaint is based are as follows:

"On 10/05/22, I contacted my mobile (**PHONE.1) at 18:57 hrs with **PHONE.2 (COFIDIS customer service phone), the conversation lasted just over 5 minutes and I have it recorded. I was informed that the conversation was recorded, so it can be verified. I was told that there was a contract with my ID number but that it was not signed and that I should request the disconnection at **EMAIL.1.

I called because that morning ING denied me a loan because they said I appeared as the holder of one pending with COFIDIS in the CIRBE, which was and is impossible as I proved and informed COFIDIS.

In the call, COFIDIS did not inform me of anything regarding the LOPD, only that I should send an email to the mentioned address to be disconnected. That is what I did on 12/05 (Document 1 in which I attach the exchanged emails). From an email named **EMAIL.2, they replied that I appeared as the holder of a loan contract and sent it to me (I am sending a copy). I replied by sending them a copy of my ID (I am sending it as well) and pointing out that I did not contract anything, nor authorized anything, nor signed anything for them to verify. As they did not respond, on the 19th I wrote to COFIDIS again and nothing (attached as document 2 a copy of the email from 19/05).

COFIDIS never verified whether I requested to be registered as the holder of a loan or not and whether I gave my consent or authorization. They did not verify my signature, as financial entities do (ALL).

They did not collect my consent and have not informed me of anything.

[...]"

Along with the complaint, the following documentation is provided:

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Copy of the National Identity Document of the complainant (hereinafter, D.N.I.).

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Copy of the "Credit Application," dated 12/01/2008. In the section "Data of the Second Holder," the ID number, name, and surname of the complainant appear, among others.

-
Copy of the emails exchanged between the complainant (**EMAIL.3) and COFIDIS (**EMAIL.2 and **EMAIL.4).

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The complainant, on 12/05/2022 at 08:54 hours, sends an email to the electronic address **EMAIL.4, with the subject "ID **NIF.1. Urgent disconnection loan **LOAN.1. NO SIGNATURE, NOR ACCEPTANCE." Its content is as follows:

"Good morning, My name is A.A.A. and my ID is **NIF.1 (I ATTACH A COPY OF MY ID on both sides where my signature can be seen). YESTERDAY I spoke with you by phone and you told me to send you an email. My bank denied me a credit yesterday due to a supposed debt with you, and I called you. I NEVER signed, and therefore never accepted or requested any credit with you. Please check

MY SIGNATURE to see if it matches any document of any credit with you. I HAVE NOT requested, NOR signed any credit with you. I do not know why you have my data without my consent or signature. You must DISCONNECT me (from the loan ***LOAN.1 that you told me about yesterday by phone) immediately and remove me from any file (Cirbe or whatever) because I do not have anything signed with COFIDIS, nor should I appear in any credit, nor have any debt with you. YOU are causing me very significant harm. You must verify that my signature is not on any credit document with you. I DO NOT HAVE ANY CREDIT, NOR DEBT WITH YOU. (...)"

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COFIDIS, on 12/05/2022 at 12:36 hours, replies from the electronic address ***EMAIL.2 as follows: "Dear Ms. A.A.A., We inform you that we have you as the second holder of a credit with Cofidis. We attach the contract for you to review. We remind you that we are at your disposal at the phone ***PHONE.2 from Monday to Friday from 9:00 a.m. to 7:00 p.m. and Saturdays from 9:00 a.m. to 2:00 p.m. Best regards, Your personal advisor."

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The complainant, on 12/05/2022 at 22:05 hours, responds as follows:

"Good evening. As you can SEE in my ID and it is clearly seen that this SIGNATURE that appears is NOT mine. IT DOES NOT RESEMBLE AT ALL. Nor is it my handwriting. NOTHING. I did not give my consent, nor authorized anything at all. I did not sign anything and therefore cannot be the holder of anything.

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You, as a bank, have the obligation to verify these matters before binding anyone. You must unbind me tomorrow, otherwise you will be acting with knowledge of what I have told you. Confirm my unbinding tomorrow from any file where I have been included (I do not know since when) or I will report you to the Data Protection Agency with all this information I have and I will seek a lawyer to claim damages. Act as you should. Furthermore, I believe, according to what I have been told, that these were revolving loans. THAT IS NEITHER MY SIGNATURE NOR MY HANDWRITING, and you should not have verified anything, I imagine, or whatever. Surely you would have forced the inclusion of other data to grant that credit, but I did not authorize or sign it. YOU MUST UNBIND ME FROM IT and CANCEL/DELETE ALL MY personal data that you have because I have not contracted anything with you (...)"

or

The claimant, on 19/05/2022 at 20:03 hours, sent a new email to COFIDIS due to the lack of response. Its content is as follows:

"Good afternoon: I have not received a response to my email from the 12th. On the 10th, by phone (a conversation that will be recorded as they told me), they indicated that there was no signature of mine on that contract and that I should request to be unbound (they can verify it). I sent a copy of my ID where my signature is visible and does not resemble the one on the contract at all. I HAVE PROVEN IT. IT IS NOT MY SIGNATURE. I CANNOT BE OBLIGATED. IT IS EVIDENT. I did not authorize anything and I found out due to ING's refusal to grant me a loan because of this. This is unbelievable. Unbind me from that loan and cancel all my data; it has already been 9 days since the 10th and THEY HAVE NOT DONE IT. They are acting wrongly and with knowledge of everything. They do not have my consent to hold my data, nor did I grant it because IT IS NOT MY SIGNATURE. They should have verified the signatures from the beginning and obtained consents. It is their obligation and they did not do it. Confirm tomorrow the cancellation of all my data and the unbinding from that loan. If you do not do it, my lawyer will file a complaint with all this first before the Data Protection Agency so that they sanction you and what is appropriate will be requested. Regards and act as you should. Tomorrow marks 10 days and this is not resolved."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 22/06/2022, this complaint was

forwarded to COFIDIS, so that it could proceed with its analysis and inform this Agency within one month of the actions carried out to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), was recorded on 22/06/2022 as evidenced by the acknowledgment of receipt in the file.

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No response has been received to this forwarding letter.

THIRD: On 01/07/2022, the claimant submitted a new letter to this Agency requesting that this body "require the Bank of Spain and, specifically, the CIRBE to suspend the processing of my personal data declared with ref. ***REFERENCE.1 during the time of processing the present procedure initiated with the complaint I have filed against COFIDIS."

FOURTH: On 29/08/2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FIFTH: On 24/02/2023, a letter from the claimant was received in this Agency requesting communication to the Bank of Spain regarding the admission for processing of the complaint in question.

SIXTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1) On 12/03/2023, this Agency received a response prepared by the claimant to the information expansion letter dated 01/03/2023, in which a copy of the recording of the call made at 18:57 hours on 10/05/2022 to the customer service phone of COFIDIS was requested. The claimant states that the call was not recorded, but that it does appear in their call log and that COFIDIS informed them that it would be recorded.

2) On 16/03/2023, this Agency received a response prepared by COFIDIS to the information request dated 01/03/2023:

- Regarding the contracting of the credit line:

1. COFIDIS states that on 22/02/2008, it approved the credit line requested by the claimant and their partner, having formalized the corresponding contract and made a deposit of €12,000 into the bank account held by both. It provides the following documentation:

a. Copy of the "Credit Application," dated 03/01/2008, in which the person COFIDIS refers to as "the partner of the claimant" is listed as the primary holder (credit applicant), and the claimant as the second holder.

The data that appears for the claimant is as follows:

i. Identifying data: name, surname, mobile phone, date of birth, and nationality.

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ii.

Professional and economic data: profession, company, company address, length of time at the company, net monthly salary, among others.

The signature of the holder is noted as "essential," as well as that of the second holder which "facilitates the granting of credit."

b.

Proof of "Payment by Transfer," dated 15/2/2007, in favor of B.B.B. for the amount of X.XXX,XX€ in a bank account that also includes the details of the claiming party.

c.

Screenshots of what would be the COFIDIS database containing identifying and professional data of the claiming party. In the section "Blocking of the person," it states "Yes."

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Regarding the claim submitted by the claiming party:

1.

COFIDIS states that "The credit is recorded as subject to judicial claim (failed) since August 2016. Until that date, Cofidis has carried out recovery actions consisting of phone calls to the phone numbers provided in the contract. However, until the moment a monitoring procedure was filed against the alleged contractors, Cofidis did not specifically contact the Claimant nor had information indicating that recovery was not appropriate due to fraudulent contracting."

2.

COFIDIS indicates that it has taken the following measures:

a.

Requested the removal of the claiming party's data from the Central Risk Information of the Bank of Spain.

b.

Separated the claiming party from the credit contract, leaving a single holder and removing their data, while keeping it duly blocked in compliance with Article 32 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights. Thus, currently, there is no debt recorded for the claiming party either in its database or in solvency files of public or private ownership.

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Regarding the communications maintained with the claiming party:

1.

COFIDIS informs that "the recordings in which no contracting is carried out are kept for only a few weeks for the purpose of studying the quality of our services, and are deleted within a short period of time. Therefore, we cannot provide such recording as we do not have it stored."

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Regarding the monitoring procedure:

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1.

COFIDIS provides a copy of the first page of the initial petition document of the monitoring procedure against the claiming party and their partner, and the entry record of said document in the Courts of ***LOCALITY.

3) On 23/03/2023, the claiming party provides a copy of the response issued by the Bank of Spain to their "Request for rectification/cancellation of data declared to the Central Risk Information" (hereinafter, the CIR). Its content states, in summary, the following:

"[...]

Regarding the claim made against COFIDIS, S.A., BRANCH IN SPAIN, through which you request the cancellation of the data due to having filed a complaint with the AEPD, we remind you that this request has already been processed previously with file number ***FILE.

In our letter dated July 1, 2022, we informed you that the complaint you filed with the AEPD against COFIDIS, S.A., BRANCH IN SPAIN, does not affect the data declared by this entity to the Central Risk Information of the Bank of Spain. Thus, the AEPD will be the competent body to resolve your claim and to require this Central Risk Information, if applicable, the effective suspension of your personal data.

Upon analyzing the new document, we indicate that it does not provide any document that proves a change or new element regarding what has already been alleged in your previous request and that justifies your claims. Consequently, as long as we do not receive the aforementioned communication from the AEPD, we cannot suspend the transfer to third parties of the questioned data.

[...]"

4) On 19/04/2023, this Agency receives a response prepared by COFIDIS to the information request dated 31/03/2023:

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Regarding the contracting of the credit line:

1.
COFIDIS provides a copy of the ID cards of the persons listed as holders of the credit contract. Specifically, of B.B.B. and the claiming party (A.A.A.), whose issuance date is April 2004 and validity until April 2014.
2.
COFIDIS states that it has made 12 transfers under the contracted credit line to the joint bank account of B.B.B. and the claiming party; the last being in July 2012. It adds that it cannot provide the proof of the aforementioned transfers as, due to being over 10 years old, its banking entity cannot provide them.

It provides the following documentation:

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- a.
Certificate of an account extract corresponding to the credit application "Créd. Directo XXXXXXXXXX signed between COFIDIS and the then partner of the claimant in February 2008. This certificate does not list the claimant as the applicant/debtor of the credit.

- b.
Copy of the emails exchanged between COFIDIS and its banking entity regarding the supporting documents for the transfers in question.

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Regarding the claim submitted by the claimant:

1.
COFIDIS states that "The data we have in our database regarding the claimant is as follows:

- Name and surname
- Number and copy of the National Identity Document (expired in April 2014)
- Date of birth: ***DATE.1
- Postal address: Calle ***ADDRESS.1.
- Email address: ***EMAIL.5
- Phone number: ***PHONE.1"

It adds that, "The aforementioned data, except for the email address, were provided in the financing application. The email address was obtained as a result of the communication that the claimant herself had with Cofidis."

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Regarding the communications maintained with the claimant:

1.
COFIDIS states that the claimant requested in 2017 the deletion of her personal data and that she was informed of the existence of an unpaid debt in her name. It clarifies that, at no time did the claimant indicate a supposed case of identity theft. It provides a copy of the emails exchanged between the entity and the claimant.

- a.
The claimant, on 15/03/2017 at 17:27 hours, sends an email to the electronic address ***EMAIL.6, with

the subject "CANCELLATION OF DATA contract (...)". Its content is as follows:

"Good afternoon:

My name is A.A.A. and my ID ***NIF.1 (attached copy). At the direction of my lawyer, I am sending you this communication.

At the end of January 2016, I sent the Bank of Spain a communication along with my ID in which I requested my CIRBE. I only have a loan with ING and another mortgage that was executed by Barclays on the habitual residence I had with my then husband. We have nothing else. I informed you that I should not appear in the CIRBE for any other loan. You responded to the Bank of Spain that I have a loan signed with you ***LOAN.1. THIS IS FALSE. What you state is false and defamatory, and I can prove it. In this regard, I tell you that the signature that appears on that loan is not mine (you can verify it with my ID) and you should have checked that this is not my signature beforehand. I have not contracted anything with you, nor did I sign anything, nor authorized anything, nor benefited from any of that loan. You must cancel my entry from the CIRBE and from any other file in which you have included me because I have demonstrated that I have not contracted anything with you (I HAVE NOT SIGNED ANYTHING). It is easy to verify with the signature, and at the time of contracting, you should not have checked anything.

Confirm by replying to this email that you will delete all my data from your files and from any other to which you have communicated them, or I will file the corresponding complaint with the Data Protection Agency and with the Bank of Spain, which will be handled by my lawyer. (...)"

b.

COFIDIS, on 28/03/2017 at 14:55 hours, responds as follows:

"Dear Ms. A.A.A.,

We are writing to inform you that we regret to inform you that we cannot process your request for data cancellation from our file as you have a contractual relationship with COFIDIS S.A. Branch in Spain.

The aforementioned relationship arises from the line of credit you maintain with us, opened on February 22, 2008, and which is currently in force.

If your wish is that we do not send you commercial offers, nor that your data be transferred to third companies for advertising purposes, we inform you that in compliance with the provisions of Organic Law 15/1999, of December 13, on the Protection of Personal Data (hereinafter, "LOPD"), we will immediately proceed to the effective fulfillment of this right of opposition.

We take this opportunity to remind you that in this contractual relationship, the cancellation amount amounts to XX.XXX,XX Euros. To regularize this overdue situation, you must make a bank transfer for that amount to our BANKIA account number: IBAN ES00 0000 0000 0000 0000 0000, do not forget to provide your ID and reference number ***REFERENCE.1 for the quick allocation of your payment.

Without further ado, we bid you farewell, sending you a cordial greeting, not without first reminding you that we are at your disposal for any questions or inquiries."

c.

The claimant, on 16/04/2023 at 22:11 hours, responds as follows:

"I insist that I do not have, nor have I ever had any contractual relationship with you, and I have proven this with the documentation that demonstrates it. I have sent it to you. I did not sign anything at all of what you are telling me.

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"I never contracted anything. I never accepted that credit they mention. I was completely unaware of it. If I see any of my data in the CIRBE, which I will check as soon as I can, or in another file, I will go directly to file a complaint with the Data Protection Agency. DELETE MY DATA."

d.

COFIDIS, on 11/05/2017 at 17:39 hours, sent the claimant a response very similar to the one mentioned above.

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Regarding the communication of the claimant's data to the CIR of the Bank of Spain:

1. COFIDIS informs that "they are duly blocked as a technical measure adopted to prevent their processing," and that "the first declaration of the claimant with the file exchange system with the Bank of Spain is from 2016." It adds that, "the cancellation was managed with the Bank of Spain as soon as

we received the complaint from the Agency. According to the screenshot, the cancellation was accepted retroactively by the CIR."

It provides a screenshot of the actions taken with the CIR.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of the GDPR, and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);

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(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow the processing of personal data to be considered lawful are enumerated in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;

c) the processing is necessary for compliance with a legal obligation to which the controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

In this regard, Recital 40 of the GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established by law, whether in this Regulation or under another Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of executing a contract to which the data subject is a party or for taking steps at the request of the data subject prior to entering into a contract."

III

Conclusion

The complaint highlights the processing of personal data of the claimant (name and surname, mobile number, and ID number, among others) by COFIDIS, without their consent, as a result of the contracting of a credit line.

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The documentation provided in the file records the existence of a credit line contracted for the amount of €12,000 formalized in the year 2008 between COFIDIS and B.B.B., with the claiming party listed as the second holder. In the copy of the referenced document, identifying data (name, surname, mobile number, date of birth, and ID number), professional and economic information of both holders appear. Additionally, COFIDIS possesses a copy of the ID of both holders, which was valid at the time of the credit application (it expired in April 2014).

COFIDIS acknowledges having received emails in 2017 from the claiming party in which, on one hand, they deny having contracted the credit line in question, alleging the falsity of the signature appearing on the document; and, on the other hand, requesting the cancellation of their data. They provide a copy of the mentioned emails that prove the existence of the cancellation request from the claiming party and, in turn, the denial of the request by COFIDIS due to an outstanding debt.

However, COFIDIS has reported that as soon as it became aware of the claim presented by the claiming party, it proceeded to adopt a series of measures. On one hand, the personal data of the claiming party related to the credit was deleted while remaining blocked. They provide a screenshot from their database showing that in the section "Blocking of the person" concerning the claiming party, it states "Yes," as well as an account extract corresponding to the credit line application in which the claiming party is no longer listed.

On the other hand, they requested the removal of the claiming party's data from the Central Risk Information of the Bank of Spain, which was accepted, as shown in the provided screenshot.

Furthermore, it is worth mentioning that COFIDIS currently has a "Direct Revolving Pre-acceptance and Acceptance Regulation" in which it establishes different actions for detecting fraud. They attach a copy of the document, dated 09/01/2023.

The GDPR requires that the processing of personal data be lawful, which must be based on one of the legal bases listed in its article 6.1. In light of the documentation in the file, it seems evident that the processing of personal data carried out by COFIDIS is covered by the assumption detailed in paragraph b) of the aforementioned provision, without prejudice to the fact that such a relationship may be questioned before the corresponding jurisdiction given that the claiming party states that someone used their personal data to contract the credit line and forged their signature.

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdictional scope of the Spanish Agency for Data Protection, as the processing of personal data without a legitimate cause has not been substantiated.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO FILE the present proceedings.

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SECOND: TO NOTIFY this resolution to COFIDIS S.A., BRANCH IN SPAIN and to the claiming party. In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in

accordance with the provisions of articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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